

Mandate Agreement Review Sample

Template version: mandate_template_vnext_phase4_wording_v1

Document reference: MANDATE-VNEXT-SAMPLE-001

Scenario: company seller, sectional title property, special conditions included

INTRODUCTION PURPOSE

Introduction and Purpose

MANDATE AGREEMENT

The Seller appoints Arch9 Realty and Alex Agent to market the Property and introduce prospective purchasers, subject to this mandate, the completed mandatory disclosure form, and the Agency and Agent holding valid Fidelity Fund Certificates where required by law.

This Mandate Agreement records the parties, the Property, the mandate period, the authority granted, commission arrangements, disclosure status and any special conditions applicable to the marketing and sale of the Property. The completed mandatory disclosure form, where applicable, is incorporated as an annexure or supporting disclosure record.

PARTIES

Parties

SELLER

Seller	Sample Seller Proprietary Limited
Identity / Registration Number	2018/123456/07
Entity Type	Company
Domicilium Address	Suite 4, 18 Commerce Road, Sandton, Johannesburg, 2196
Email	seller.representative@example.com
Telephone	+27 82 555 0199

AGENCY AND AGENT

Trading Name	Arch9 Realty
Registered Legal Name	Arch9 Realty Proprietary Limited
Registration Number	2020/000000/07
Registered Address	1 Review Avenue, Bryanston, Johannesburg, 2191
Firm FFC Number	FFC-FIRM-2026-0001
FSP Number	FSP 000000
Agent	Alex Agent
Agent Email	alex.agent@arch9.example
Agent Phone	+27 11 555 0142
Agent FFC Number	FFC-AGENT-2026-0001

Company Seller Authority

COMPANY SELLER AUTHORITY

Where the Seller is a company or close corporation, the signatory warrants that the Seller is duly authorised to grant this mandate and that the representative has authority to bind the Seller.

Registration Number	2018/123456/07
Representative	Casey Seller
Capacity	Director
Resolution Date	24 July 2026
Authority Basis	Board resolution approving the mandate and authorising the representative

PROPERTY DETAILS

Property Details

PROPERTY

Address	Unit 12, The Junction, 45 Main Road, Bryanston, Johannesburg
Display Address	Unit 12, The Junction, Bryanston
Suburb / City	Bryanston Johannesburg
Property Type	Apartment
Title Type	Sectional Title

PROPERTY SECTIONAL TITLE PACK

Sectional Title Property Details

SECTIONAL TITLE PROPERTY DETAILS

Where applicable, the sectional title or share block particulars below form part of the Property description.

Unit Number	12
Section Number	12
Sectional Title Number	SS 123/2020
Scheme / Complex	The Junction
Estate	Bryanston Residential Estate

MANDATE TERMS

Mandate Terms

MANDATE TERMS

Mandate Type	Sole mandate
Start Date	1 August 2026
End Date	30 November 2026

The Seller authorises the Agency to market the Property, arrange viewings, introduce prospective purchasers, receive and present offers, and assist with transaction administration within the mandate period.

COMMISSION TERMS

Commission Terms

COMMISSION

Asking Price	R 2 850 000
Commission Structure	Percentage commission
Commission Percentage	5% plus VAT
Commission Amount	As calculated from the accepted sale price
VAT Treatment	Commission amounts are exclusive of VAT unless expressly stated otherwise

Commission is earned where the Agency is the effective cause of a sale, where the Seller accepts an offer introduced by the Agency, or where commission is otherwise due under this mandate. Commission is payable on registration of transfer unless the parties record a different written payment trigger. VAT is dealt with according to the VAT treatment recorded above.

If a prospective purchaser introduced during the mandate concludes a sale within any agreed protection period, the commission provisions continue to apply to the extent permitted by law and the signed mandate terms.

MARKETING LISTING TERMS

Marketing and Listing Terms

MARKETING AND LISTING

The Agency may prepare marketing material, photograph or otherwise present the Property, publish the listing on approved channels, contact prospective purchasers, arrange viewings and conduct reasonable marketing activities for the Property.

The Seller will provide the Agency and prospective purchasers introduced by the Agency with reasonable access to the Property for valuation, photography, marketing, viewing and sale-related purposes, subject to reasonable notice, security arrangements and any lawful occupancy or tenant requirements.

SPECIAL CONDITIONS

Special Conditions

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Special Conditions	Viewings by appointment with at least 24 hours notice. Existing tenant access arrangements must be respected.
Annexures	Mandatory disclosure form; Company resolution; Body corporate conduct rules

GENERAL TERMS

General Legal Terms

GENERAL TERMS

This mandate is governed by South African law. The parties choose their recorded addresses as domicilium for notices unless changed in writing.

No amendment, cancellation or waiver is valid unless recorded in writing and accepted by the parties. If any provision is unenforceable, the remaining provisions continue to apply.

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POPIA FICA

POPIA and FICA

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The Seller consents to the processing of personal information reasonably required for marketing, mandate administration, FICA verification, transaction communication, record keeping and related property services.

The Seller authorises lawful sharing of relevant information with conveyancers, bond originators, compliance providers, transaction service providers and prospective purchasers where reasonably required for the mandate or resulting transaction.

Signatures

SELLER

Name

Sample Seller Proprietary Limited

Representative

Casey Seller

Capacity

Director

Signature

Date

AGENCY

Trading Name

Arch9 Realty

Agent

Alex Agent

Agent FFC Number

FFC-AGENT-2026-0001

Signature

Date

WITNESS

Name

Date

Signature

Date